

20. 9:01 AM CASE NUMBER: C25-00242
CASE NAME: ALLIED WORLD SURPLUS LINES INSURANCE COMPANY VS. WILLIAM JOHNSON
*HEARING ON MOTION FOR DISCOVERY JOINDER TO MOTION TO COMPEL FURTHER RESPONSES
TO TO REQUEST FOR PROD
FILED BY: TYSON & MENDES LLP
TENTATIVE RULING:

See LINE 19, above.

21. 9:01 AM CASE NUMBER: C25-00575
CASE NAME: JANE DOE N.M. VS. DOES 1 THROUGH 100, INCLUSIVE
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF
DOCS OF RECORDS
FILED BY:
TENTATIVE RULING:

Pursuant to the order made at the Case Management Conference (CMC) on September 10, 2026, the hearing date is **CONTINUED** to **October 5, 2026, 9:00 a.m.**, in **Department 34**. The parties to notify the Court as soon as a final resolution has been reached.

22. 9:01 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET TWO
FILED BY: RODRIGUEZ, ROBERT D.
TENTATIVE RULING:

Plaintiff Robert D. Rodriguez ("Plaintiff") filed, on March 12, 2026, a motion to compel (the "Motion to Compel") responses by defendants Simona Yana S. Zakheim ("Ms. Zakheim") and Hyden Zakheim, LLP (the "Law Firm") (collectively, the "Zakheim Defendants") to Plaintiff's **Special Interrogatories, Set Two** (the "SROGs, Set Two"). The Motion to Compel was set for hearing on September 14, 2026. No opposition has been filed to date.

Background

It appears that the notice of motion contained an error. The caption page of the Motion to Compel, which includes the notice of motion, referenced an erroneous case number. The caption referred to case number "C23-02654." That case was dismissed or about April 8, 2025.

The case number for the pending action is C25-01397. In the exercise of its discretion and to ensure proper notice, the Court continues this matter to a new hearing date and will issue an order giving notice to all parties.

In addition, this is one of several pending discovery motions. The next group of discovery motions have hearing dates on November 2, 2026. Those motions (collectively, the "Defendant Masoudi Discovery Motions") are as follows:

1. Plaintiff's Motion to Compel Further Responses by defendant Elisabeth B. Masoudi ("Ms. Masoudi") to Plaintiff's Special Interrogatories, Set Two, filed April 20, 2026.

2. Plaintiff's Motion to Compel Further Responses by Ms. Masoudi to Plaintiff's Request for Admissions, Set Three, filed April 20, 2026.

3. Plaintiff's Motion to Compel Further Responses by Ms. Masoudi to Plaintiff's Demand for Production of Documents, Set Two, filed April 21, 2026.

Beyond the Defendant Masoudi Discovery Motions set in November 2026, there are not less than five more discovery related motions presently set in February 2027. All of these motions have been noticed by Plaintiff.

While the Court has made no determinations as yet as to the merits of the Defendant Masoudi Discovery Motions or other matters, the Court is concerned about what appears to be pattern of escalation of discovery disputes that may require it to order the appointment of a discovery referee. A preliminary review of the Defendant Masoudi Discovery Motions supports the Court's concerns that the discovery wrangling is not particularly focused on problem solving rather than escalation of disputes over issues as to both the requests and the responses.

To avoid having to consider a discovery referee and otherwise in the exercise of the Court's inherent authority and discretion to control the proceedings pending before it, the Court makes the following orders regarding the resolution of the pending Motion to Compel as well as the Defendant Masoudi Discovery Motions.

Disposition

The Court finds and orders as follows:

1. The hearing on the Motion to Compel is hereby **CONTINUED to November 2, 2026, 9:00 am**, in Department 34.
2. **Further Court Ordered Meet and Confer re Motion to Compel.** Plaintiff and the Zakheim Defendants are ordered to engage in further meet and confer regarding resolution of the Motion to Compel.
3. **Opposition to Motion to Compel.** If not resolved through such further meet and confer, any opposition to the Motion to Compel shall be filed by the Zakheim Defendants no later than **October 16, 2026**.
4. **Further Court Ordered Meet and Confer re Defendant Masoudi Discovery Motions.** The parties to the Defendant Masoudi Discovery Motions are ordered to engage in further meet and confer regarding resolution of the discovery requests and responses at issue in the Defendant Masoudi Discovery Motions **within twenty-one (21) days** of the date of this order. If not resolved through such informal talks, the parties to the Defendant Masoudi Discovery Motions are ordered to prepare and submit the following:
 - a. **Joint Separate Statement.** No later than **October 16, 2026**, the parties to the Defendant Masoudi Discovery Motions shall prepare and file, if all issues have not been resolved, a Joint Separate Statement as to any remaining discovery requests in dispute.
 - b. **Joint Separate Statement Content.** The Joint Separate Statement shall, in a table format with separate rows divided into five separate columns, identify: (1) the discovery request at issue with the full text of the request, (2) the full text of the written response (and containing **ONLY** the most recent and operative response at issue if a prior supplemental or amended response

has been made), (3) the propounding party's contentions regarding any inadequacy of the written discovery response and/or document production; (4) any response by responding party as to why the written discovery response and/or document production is adequate; and (5) any reply by the propounding party to the response. **No single entry on the Joint Separate Statement shall exceed 200 words (except as to the verbatim recitation of the requests and responses in Column Nos. 1 and 2).** Only a single Joint Separate Statement shall be prepared for all of the Defendant Masoudi Discovery Motions (with separate sections for each set of discovery requests at issue).

- c. **Preparation of Joint Separate Statement.** The propounding party shall prepare the initial draft of the Joint Separate Statement and fill in the information as to Column Nos. 1 through 3. The propounding party shall then provide that draft to the responding party who shall complete Column No. 4. The responding party shall then provide the draft back to the propounding party who shall then complete Column No. 5.
 - d. **Filing.** Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file-endorsed copy of the pleading not less than one week in advance of the hearing date on the Defendant Masoudi Discovery Motions.
 - e. **Courtesy Hard Copy and Hard Copy Format.** The parties shall also cooperate to provide a courtesy hard copy of the Joint Separate Statement to Department 34 not less than one week in advance of the hearing date on the Defendant Masoudi Discovery Motions. **Except as to any cover pleading page(s), this hard copy shall be provided on legal sized paper and printed in a landscape orientation with no less than a 14 point font.** This is a courtesy copy formatted for the Court's use and may be re-formatted from the as-filed version.
5. It is not clear to the Court whether these particular discovery disputes have been submitted to the Court's Discovery Facilitator program. If so, the further meet and confer requirements above shall be satisfied by participation in such program. In any event, the parties shall comply with the requirements for the filing of the papers specified in Paragraphs 3 and 4a-4e as to all unresolved matters.
 6. The Court shall issue the order after hearing.